

24STLC06914 24STLC06914

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C09%2F08%2F2026

Source SHA-256: 65b1266a39fbe655dc741844e9dab21eeaf41779d7e55d8cf002c200f201928a

Case Number: 24STLC06914 Hearing Date: September 8, 2026 Dept: 25

HEARING

DATE: Tues., September 8, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Lewis

v. CPDA Trucking LLC, et al. COMPL.

FILED: 09-23-24

CASE NUMBER: 24STLC06914

NOTICE:

OK

PROCEEDINGS: MOTION TO

COMPEL PLAINTIFF TO RESPOND TO WRITTEN DISCOVERY AND REQUEST FOR SANCTIONS;

MOTION TO DEEM MATTERS ADMITTED AGAINST PLAINTIFF AND REQUEST FOR SANCTIONS

MOVING PARTY: Defendants

CPDA Trucking LLC and Jose Francisco Garcia

RESP. PARTY: Plaintiff Catherine Lewis

MOTIONS TO DEEM REQUESTS FOR

ADMISSIONS ADMITTED, COMPEL RESPONSES TO INTERROGATORIES, COMPEL RESPONSES TO

REQUESTS FOR PRODUCTION OF DOCUMENTS; REQUESTS FOR SANCTIONS

(Code Civ. Proc., §§ 2030.290; 2031.300; 2033.280)

TENTATIVE RULING:

The

Court DENIES CPDA Trucking LLC and Jose Francisco Garcia's motions.

CDPA is

to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,
rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a)
OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: Filed
on August 25, 2026 ☐
Late ☐ None

REPLY: Filed
on August 31, 2026 ☐
Late ☐ None

ANALYSIS:

Catherine

Lewis sued CPDA Trucking LLC and Jose Francisco Garcia for motor vehicle and negligence causes of action. CPDA and Garcia answered. Lewis then unsuccessfully moved to reclassify this case as an unlimited jurisdiction case. CPDA and Garcia then propounded discovery on Lewis, including form interrogatories, special interrogatories, requests for production of documents, and requests for admission. Lewis failed to timely respond to the discovery requests, so CPDA and Garcia move to compel responses to the requests and to deem matters admitted. The Court DENIES the motions.

Code of

Civil Procedure section 94 constrains discovery in limited jurisdiction actions to any combination of 35 interrogatories with no subparts, demands to produce documents, and requests for admission with no subparts. (Code Civ. Proc., § 94, subd. (a).) CPDA and Garcia propounded a total of 56 discovery requests on Lewis: 25 form interrogatories, eight special interrogatories, five requests for production, and 18 requests for admission.

Because the

discovery propounded on Lewis exceeds the limits permitted in a limited civil case, the Court will not compel Lewis's responses. The Court will not engage with the parties' arguments over any responses that have been subsequently served, verified or not, as it will not grant motions to compel discovery that were propounded in violation of the Code of Civil Procedure.

CPDA and

Garcia may withdraw their previous discovery requests and propound new ones on Lewis, provided they comply in all respects with the relevant provisions of the Code of Civil Procedure and the California Rules of Court.

CDPA is to
give notice.